

IN THE HIGH COURT OF TANZANIA
DODOMA SUB-REGISTRY
AT DODOMA

LAND APPEAL NO. 22219 OF 2024

*(Arising from Land Application No. 91 of 2018 in the District Land and Housing
Tribunal for Dodoma)*

ALLY SHARIF AIDAN.....APPELLANT

VERSUS

GODFREY MASSAMA MAKEY.....1ST RESPONDENT

JABIR HAMIS JABIR.....2ND RESPONDENT

JUDGMENT

10th & 31st December, 2025

MUSOKWA, J.

In the District Land and Housing Tribunal at Dodoma (DLHT), the 1st respondent instituted Land Application No. 91 of 2018 against the appellant and the 2nd respondent, claiming ownership of the suit premises Plot No. 19, Block 24, Majengo Area, within Dodoma City. During the hearing of the matter, the trial tribunal proceeded to hear the case *ex parte* against the 2nd respondent following his failure to enter an appearance in the proceedings.

Upon the full trial, the DLHT rendered its judgment in favour of the 1st respondent herein, declaring him the lawful owner of the disputed land and consequently ordering the appellant to vacate the suit premises.

Aggrieved by both the decision and the consequential orders of the trial tribunal, the appellant preferred the present appeal, advancing eight (8) grounds of appeal, as set out hereunder:

- 1. That, the Honourable District Land and Housing Tribunal for Dodoma erred in fact in allowing the application against the evidence and law.*
- 2. That, the Honourable District Land and Housing Tribunal for Dodoma erred in fact in deciding that the 1st Respondent, whereas the agreement for sale was contrary to law.*
- 3. That, the Honourable District Land and Housing Tribunal for Dodoma erred in fact in deciding that the sale cannot be invalidated by the nullification of the appointment of the vendor to be administrator of the estate of the deceased.*
- 4. That, the Honourable District Land and Housing Tribunal for Dodoma erred in law and in fact in deciding on the issue of citizenship of the late father of the appellant whereas the same was not pleaded and no specific issue was drawn.*
- 5. That, the Honourable District Land and Housing Tribunal erred in law in refusing to admit the exhibit of the appellant contrary to law.*
- 6. That, the Honourable District Land and Housing Tribunal erred in law and in fact in assuming that, the document for surrendering the house to the father of the appellant was the document of sale*
- 7. That. the Honourable District Land and Housing Tribunal erred in deciding the acquisition of the Housing in dispute by the late*



father of the appellant to be governed by the Land Act, whereas it was executed under the previous land law.

8. That, the Honourable District Land and Housing Tribunal erred in conducting the case against the law and procedure.

In a manner similar to the proceedings before the trial tribunal, the appeal was likewise heard *ex parte* against the 2nd respondent due to his non-appearance. The appeal was heard by way of written submissions, and the parties duly complied with the court's directions by filing their respective submissions within the prescribed timelines. The appellant had the service of Mr. Elias Machibya, advocate, whereas the 1st respondent was represented by Ms. Josephine Mnzava, advocate.

The appellant's counsel argued grounds 1 and 2 jointly, contending that the DLHT erred in its evaluation of the evidence and in ultimately deciding in favour of the 1st respondent. Counsel submitted that the trial tribunal placed undue reliance on the testimony of the three witnesses called by the 1st respondent, while discrediting the appellant's evidence on the basis that the alleged sale did not comply with the procedures prescribed under the Land Act, Cap. 112 R.E. 2019. According to the appellant's counsel, this approach was erroneous and tainted by several fundamental defects.

First, the trial tribunal failed to properly address the nature of the complaint as pleaded in the application, which was directed not only against the appellant but also against his late father (deceased). The 1st respondent had alleged that, following the purported purchase of the suit property, the appellant's late father and his family refused to surrender vacant possession and instead asserted ownership thereof. Notwithstanding these allegations, the administrator of the deceased's estate—being a necessary party in the circumstances—was never joined in the proceedings.

Secondly, the 1st respondent alleged that he purchased the suit property from the administrator of the estate of the late Hamis Jabir. However, the alleged administrator was neither joined in that representative capacity, nor were any documentary exhibits produced during the hearing to substantiate the existence of assets, bequests, appointment of legal personal representatives, or letters of administration. The appellant's counsel contended that the failure to join necessary parties was fatal to the proceedings, placing reliance on the decision of the Court of Appeal of Tanzania (CAT) in **Mexons Investment Limited vs CRDB Bank Plc**, Civil Appeal No. 222 of 2018 [2022] TZCA 297 (13 May 2022). He emphasized that the appellant's late father—now represented by an



administrator—was central to the dispute, as the defence consistently asserted proprietary rights derived from him.

Thirdly, the learned advocate submitted that the trial tribunal erred in subjecting a transaction that allegedly took place in 1978 to land legislation enacted in 1999, contrary to the well-established principle that statutes operate prospectively unless expressly provided otherwise. According to the appellant's counsel, the trial tribunal ought to have assessed the validity and effect of the disposition of the suit property in accordance with the law in force at the time the transaction was concluded.

Fourthly, the learned counsel contended that the trial tribunal failed to consider that Exhibit "K.M.1" was tendered in evidence without proof of payment of the requisite stamp duty. He further submitted that the 1st respondent executed two sale agreements on the same day—one reflecting a consideration of TZS 17,000,000/= and another indicating TZS 4,000,000/=, the latter being used for purposes of effecting transfer. Referring to the admissions recorded at pages 37 and 46 of the trial proceedings, counsel relied on **Zakaria Barie Bura vs Theresia Maria John Mubiru** [1995] TLR 211 to argue that such conduct amounted to tax evasion, thereby rendering the transaction illegal and void.



Fifthly, the learned advocate contended that Exhibits P1, P2, and P3 were admitted in evidence but were not read in open court, contrary to established procedure. He relied on **Selemani Selemani Mkwavila (Administrator of the Estate of the late Jafari Juma Budu) vs Agatha Athuman & Another**, Land Appeal No. 5 of 2022 (unreported), to argue that the failure to read admitted exhibits vitiates the proceedings. He further submitted that Exhibit "K.M.1" was likewise admitted at page 33 of the record without being read in court, yet was subsequently relied upon by the trial tribunal in reaching its decision. On that basis, he urged that the said exhibit be expunged from the record.

Sixthly, it was further submitted that the evidence tendered by the 1st respondent was contradictory and unreliable. Counsel for the appellant pointed out that PW1 referred to an offer dated 24th June 1986 (as indicated in paragraph 6(b)(i) of the application), whereas PW2 referred to an annual offer allegedly issued in 1969 and expiring in 1970 (see pages 44–45 of the trial tribunal's proceedings). Notably, neither of the purported offer letters was produced in evidence. Relying on **Hemed Said vs Mohamed Mbilu** [1984] TLR 113, the appellant's counsel argued that a court's decision must be grounded on credible and cogent evidence, which, in his view, was lacking in the present case.



On the issue of nullification of administration, the learned advocate submitted that although the trial tribunal admitted Exhibit "K.U.1" (at page 67 of the record), being the ruling in *Kigoma District Court Revision No. 71 of 2007* which nullified the appointment of Jabir Hamis Jabir as administrator, it nonetheless erred in holding that the impugned sale remained valid. He contended that nullification, unlike revocation, operates retrospectively and vitiates the entire process *ab initio*. Consequently, the authorities relied upon by the trial tribunal were, in his view, distinguishable and wrongly applied to the circumstances of the present case.

With regard to the issue of citizenship, the appellant's counsel submitted that the trial tribunal erred in determining the citizenship status of the appellant's late father, Shariff Aidan, despite the matter neither having been pleaded nor framed as an issue for determination. He contended that the deceased was not joined in the proceedings, nor was his legal administrator, thereby effectively condemning him unheard. In support of this position, reliance was placed on **Raza Somji vs Amina Salum** [1993] TLR 208 and Article 13(6)(a) of the Constitution of the United Republic of Tanzania, 1977, which guarantees the right to be heard. The appellant's counsel further argued that such an error could not be



salvaged under section 49 of the Land Disputes Courts Act, Cap. 216 R.E. 2023, as it occasioned a miscarriage of justice.

On refusal to admit the appellant's exhibit, counsel submitted that the trial tribunal erred by admitting the document only for identification at page 63 of the proceedings, without delivering a ruling on the objection raised. He relied on **Jackson Nebat Mpenzo vs Republic**, DC. Criminal Appeal No. 35481 of 2024 [2025] TZHC 5801 (22 September 2025), submitting that failure to rule on objections constitutes a serious procedural error.

The learned counsel further contended that the trial tribunal misdirected itself by construing a document of surrender as a sale agreement, contrary to the express contents and context of the document. He argued that this amounted to a misapprehension of the evidence, thereby warranting appellate interference. In support of this submission, reliance was placed on **Shabani Said vs Rajabu Seif** [1993] TLR 15 and **Yohana Charles vs Republic** [2006] TLR 384.

Finally, it was submitted that the trial tribunal committed a procedural error by entertaining the matter against the appellant in his personal capacity rather than in his capacity as administrator of the deceased's estate, notwithstanding that the suit property formed part of the estate of the late Shariff Aidan Mohamedi. In support of this contention, reliance



was placed on **Musira Gasaya vs Mussin Abdallah Simai**, Civil Revision No. 22355 of 2024 [2025] TZHC 2171 (4 April 2025) and **Malietha Gabo vs Adam Mtengu**, Civil Appeal No. 485 of 2022 [2023] TZCA 17318 (8 June 2023).

In the totality of the foregoing, the appellant's counsel submitted that the decision of the DLHT was tainted by errors of law, fact, and procedure, which culminated in a miscarriage of justice. He accordingly prayed that the impugned judgment be set aside and that the appeal be allowed with costs.

In reply, counsel for the 1st respondent submitted that the appellant had failed to demonstrate any material error or serious flaw in the judgment of the DLHT warranting interference by this Court.

Counsel submitted that on 3rd March 2008, the 1st respondent lawfully purchased the suit house from Jabir Hamis Jabir (the 2nd respondent), who was, at the material time, the duly appointed administrator of the estate of the late Hamis Jabir Hamis, the original owner of the property. In support of this contention, the 1st respondent tendered in evidence a *Letter of Offer Ref. No. DO/3123/ADS* dated 24th June 1986 issued in the name of Hamis Jabir, together with a *Transfer of Right of Occupancy in respect of Plot No. 19, Block 24, Majengo, Dodoma City*, from Jabir Hamis



Jabir to Godfrey Massama Makey, which was admitted as Exhibit "KM1" at page 33 of the typed trial proceedings.

The learned counsel further submitted that, following the purchase, the 1st respondent settled all outstanding land rent arrears covering the period from 1999 to 2012 during the process of effecting the transfer, and thereafter continued to pay land rent in his own name for the period from 2012 to 2022. In support of this assertion, before the trial tribunal, the 1st respondent tendered a *Land Rent Assessment Bill* for the financial years 2018/2019 and 2019/2020 dated 13th February 2020, together with an *Exchequer Receipt* dated 14th February 2020, all reflecting him as the registered owner of the suit property.

Counsel for the 1st respondent further contended that, at the time of the purchase, the appellant and his late father, Sharif Aidan Mohamed, together with their family, were occupying the suit house as tenants. Counsel asserted that despite having been served with a notice to vacate, they refused to surrender vacant possession, thereby necessitating the institution of Land Application No. 91 of 2018. A notice to vacate dated 22nd April 2008 was tendered and admitted for identification as "ID1."

In response to grounds 1 and 2 of the appeal, the 1st respondent's counsel submitted that the alleged pitfalls raised by the appellant are

inconsistent with both the pleadings and the evidence on record. The learned advocate contended that the appellant admitted in his testimony that he is the one residing in the suit house and interfering with the respondent's proprietary rights. It was further argued that the suit house did not form part of the estate of the appellant's late father, and that no letters of administration were produced to substantiate the claim that the property belonged to the deceased's estate.

On the issue of joinder, learned counsel for the 1st respondent submitted that Jabir Hamis Jabir was properly joined in the proceedings at the trial stage pursuant to the appellant's counterclaim, as reflected at page 5 of the record of proceedings. Counsel further maintained that his capacity in the matter was clearly disclosed and properly established.

With regard to the alleged sale of 1978, the 1st respondent submitted that the appellant placed reliance on a non-existent law. In any event, counsel argued that the impugned transaction was governed by the land laws as amended from time to time, and that reference to subsequent legislation was not fatal to the respondent's case.

On the allegations relating to stamp duty and tax compliance, the 1st respondent further submitted that by the time Exhibit "KM1" was tendered in evidence, the transfer process had already been completed and all



requisite statutory payments, including stamp duty, had been duly settled. Counsel maintained that the 1st respondent did not admit to any tax evasion, as alleged at pages 37 or 46 of the trial record. It was further submitted that the testimony of PW2, Alex Romanus Milinga, a Land Officer, clarified that valuation and taxation are determined on the basis of the official valuation or the declared consideration, as the case may be.

On the issue of the alleged unread exhibits, the 1st respondent submitted that only Exhibit "KM1" was formally tendered and read in evidence. Counsel maintained that Exhibits P1, P2, and P3 were never tendered, whereas "ID1" was duly read during the trial. The allegation to the contrary was therefore said to be unfounded.

As regards the alleged contradictions, the 1st respondent submitted that the evidence on record clearly demonstrated the manner in which the suit house was acquired, transferred, and how rent was paid. Counsel contended that the appellant failed to establish from whom he, or his father, acquired the property. In support of this position, reliance was placed on **Hemed Said vs Mohamed Mbilu** [1984] TLR 113, for the proposition that where the findings of the trial tribunal are supported by credible evidence, an appellate court ought not to interfere.



In response to the 3rd ground of appeal, the 1st respondent submitted that the alleged nullification of the administrator's appointment was time-barred under section 22(4) of the Magistrates' Courts Act, Cap. 11 R.E. 2023. Counsel pointed out that the appointment was made on 5th February 2008, whereas the revision order was delivered on 9th February 2009, well outside the prescribed statutory period. It was further contended that the sale in question had been completed on 3rd March 2008, prior to the purported nullification, and that such subsequent order could not invalidate acts lawfully done before its issuance. The 1st respondent therefore maintained that the trial tribunal properly found him to be a *bona fide* purchaser for value, as reflected at page 8 of the judgment.

In response to ground 4, the 1st respondent submitted that the question of citizenship arose squarely from the appellant's defence, in which he asserted ownership through his father. Counsel argued that the trial tribunal was therefore entitled to address that issue in the course of determining the question of ownership. It was further contended that the authorities relied upon by the appellant are distinguishable from the facts and circumstances of the present case.



With respect to grounds 5 to 7, learned counsel for the 1st respondent submitted that the appellant failed to cite any specific statutory provision to demonstrate the alleged procedural irregularity. Counsel maintained that the trial tribunal neither misdirected itself nor failed to direct itself on any material point of law or fact. It was further pointed out that the proceedings at pages 73–75 of the trial record reflect the appellant's admission that his claim was founded upon a sale agreement involving his father.

In response to ground 8, the 1st respondent submitted that the appellant was properly sued in his personal capacity, as he was the person in actual occupation of the suit house and had refused to vacate the premises. Counsel argued that there was no evidence demonstrating that the suit property was ever registered in the name of Sharif Aidan Mohamed, notwithstanding the alleged occupation for nearly thirty years. It was further contended that no proof was adduced of rent payments, registration, or any post-death administration of the estate to support the appellant's claim.

In conclusion, the 1st respondent submitted that the appellant's allegations are a mere afterthought, unsupported by the record. Counsel contended that ownership of surveyed land is established through proof



of a Right of Occupancy, which the 1st respondent conclusively demonstrated by tendering Exhibit "KM1." Reliance was placed on **Nacky Esther Nyange vs Mihayo Marijani Wilmore & Another**, Civil Appeal No. 207 of 2019 [2022] TZCA 739 (24 November 2022) as cited in **Salim Said Mtomekela vs Mohamed Abdallah Mohamed**, Land Case No. 78 of 2015 [2023] TZHCLandD 15736 (30 March 2023). The 1st respondent submitted that the appellant has no lawful justification for continued occupation and has unlawfully collected rent amounting to TZS 72,000,000/=. Thus, counsel prayed that the appeal be dismissed with costs and the decision of the trial tribunal be upheld.

In rejoinder, the appellant's counsel reiterated the submissions made in chief and emphasized that the decision of the trial tribunal was vitiated by six fundamental pitfalls, which were clearly demonstrated in his submissions.

He submitted that the respondent's application alleged that the appellant's deceased father failed to hand over the suit house and wrongfully claimed ownership thereof. These allegations formed the cause of action as pleaded. However, there was a material variance between the pleadings and the evidence adduced at trial. Furthermore, the persons against



whom the cause of action was directed were never joined as parties to the proceedings.

Counsel for the appellant further submitted that although the appellant testified, both in chief and under cross-examination, that he is the one currently residing in the suit house, the cause of action must be ascertained from the pleadings and not from the evidence of a respondent at trial. The burden lay on the 1st respondent, as the applicant, to prove his pleaded case. Having pleaded complaints against persons who were not joined as parties to the proceedings, including the administrator of the estate of the late Sharif Aidan Mohamed, who was alleged to have claimed ownership of the suit house, counsel submitted that the proceedings were rendered defective.

The appellant further submitted that the finding that his late father had no interest in the suit land is unsupported by both the pleadings and the evidence. Counsel argued that the alleged vendor, who according to the evidence never handed over possession of the suit house to the 1st respondent, was likewise not joined as a party to the proceedings. It was therefore contended that the non-joinder of these necessary parties rendered the entire trial a nullity.



Addressing the contention that the 2nd respondent was joined at the instance of the appellant, the appellant submitted that this assertion is misconceived. The amended application was initiated by the 1st respondent for his own purposes and bore no connection to any counterclaim by the appellant. In any event, the undisputed fact remains that the case at trial was that of the 1st respondent, who failed to join the necessary parties at the time of instituting the proceedings.

Accordingly, the appellant's counsel maintained that the trial proceedings were fundamentally defective and that the resulting decision cannot be allowed to stand.

Having carefully examined the record of the trial tribunal and duly considered the written submissions filed by the parties, this Court is of the view that the central issue for determination is whether the present appeal is meritorious.

However, before delving into the merits of the appeal, it is necessary to first address the preliminary issue of misjoinder or non-joinder of a necessary party, as the determination of this issue goes to the root of the proceedings. The question as to whether a person is a necessary party may be resolved by reference to the pleadings and/or the submissions of the parties. This position was succinctly stated by the CAT in **Hassan Ally**



Warsama (as administrator of the estate of the late Ally Warsama) vs Haybe Ahmed Dudeh (as administrator of the estate of the late Ahmed Haji Mohamed), Civil Appeal No. 518 of 2020 [2024] TZCA 1193 (26 November 2024), where, at page 8, the Court held as follows:

"From the above provision, the question as to how the court should know whether a certain person is a necessary party, can easily be answered through the pleadings, like in the present case, or submissions by the parties to the court."

Turning to the proceedings before the trial tribunal, the 1st respondent asserted that he purchased the suit property from the administrator of the estate of the late Hamis Jabir. A careful scrutiny of the record reveals, however, that the alleged administrator was not joined in the proceedings in that representative capacity. Moreover, although this Court perused the documents relating to the assets, bequests, and legal personal representatives of the deceased, including the alleged letters of administration, it is evident that none of these documents were tendered or produced before the trial tribunal during the hearing of the case.

Further, a careful perusal of the record reveals that the dispute before the trial tribunal substantially revolved around the interests of the appellant's father, who is deceased. Notwithstanding this position, the appellant was sued strictly in his personal capacity. No evidence was tendered before



the trial tribunal to demonstrate that the appellant's father had lost ownership of the suit premises through any prior proceedings or lawful process. In the circumstances, it was incumbent upon the 1st respondent to institute the suit against the appellant in his representative capacity as the administrator of his late father's estate, if at all.

The explanation advanced by the 1st respondent that the appellant was sued merely because he was in possession of the disputed property cannot be sustained. A proper tracing of ownership of the suit premises could not lawfully exclude the estate of the appellant's deceased father, who previously resided on and laid claim to the land in question. The omission to address this fundamental link in the chain of ownership renders the proceedings procedurally defective.

The legal consequence of failing to join a necessary party has been firmly settled. In **Juliana Francis Mkwabi vs Lawrent Chimwaga**, Civil Appeal No. 531 of 2020, where the CAT at page 11, observed that:

"Flowing from the foregoing discussion, it is our considered view that, upon making a determination that a necessary party was not joined in the suit, the learned High Court Judge was required to refer back the matter to the trial court with a direction that a necessary party be joined and the suit proceed from there."



The CAT further emphasized the gravity of such omission in **Chiyanga Enterprises T. Ltd vs EXIM Bank (Tanzania) Limited & Another**, Civil Appeal No. 362 of 2021 [2024] TZCA 711 (13 August 2024), where, at page 7, it was held that:

"Determination of a suit without joining a necessary party is a fatal irregularity which renders the decision and proceedings thereof a nullity."

Guided by the foregoing authorities and upon a sober reflection of the record, I am persuaded that the administrator of the estate of the late Hamis Jabir was a necessary party to the proceedings before the trial tribunal. This conclusion is inevitable, particularly in light of the 1st respondent's own admission that he purchased the disputed house from the said administrator. Proceeding to determine the dispute without joining the legal representative of the late Hamis Jabir constituted a fatal procedural irregularity that vitiated the entire proceedings and rendered the resulting decision a nullity.

This finding alone is sufficient to dispose of the appeal, and it is therefore unnecessary to consider the remaining grounds of appeal.

Accordingly, the appeal is hereby allowed on account of the identified fatal procedural irregularity. The judgment and consequential orders of the

DLHT are quashed and set aside. The matter is remitted to the trial tribunal for rehearing, with a direction that the necessary party be duly joined before the proceedings recommence.

There shall be no order as to costs.

The right of appeal is explained.

DATED at **DODOMA** this 31st day of December, 2025.




I.D. MUSOKWA
JUDGE

Judgment delivered in the presence of the appellant and in the absence of the respondents.




I.D. MUSOKWA
JUDGE